

UPSC GS-I / GS-II POLITY

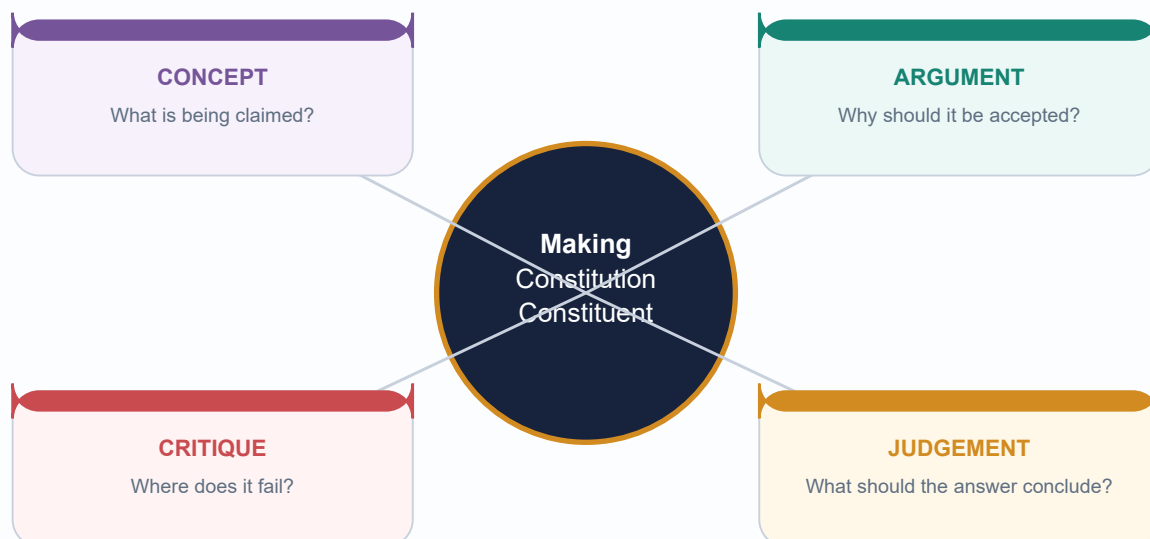
Making of the Constitution: The Constituent Assembly

Integrated Basic + Advanced Course

14 deep-learning modules | Demand for a Constituent Assembly to the Republic

Concept maps, timelines, committee tables, UPSC traps and Mains frameworks

Prepared from the verified Polity knowledge base (M. Laxmikant, Indian Polity, Ch. 2)



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

1. Demand for a Constituent Assembly (1934-1946)

GS-I / GS-II
Polity -
Constitutional
History

NEWS TRIGGER

26 November is observed as Constitution Day (Samvidhan Divas) since 2015, and 2024 marked 75 years of the Constitution's adoption -- both anchor a recurring UPSC interest in exactly how and when the demand for an Indian Constituent Assembly (CA) originated and matured.

INTRO & ORIGIN

The idea of a Constituent Assembly (CA) for India was not born with Independence; it was the product of a 12-year political demand that hardened through rejected British schemes. The Congress wanted a body of Indians, elected by Indians, to write India's own Constitution -- not one handed down by Parliament in London.

Analytical framing: read this module as a chain of escalating asks -- an idea, then a party demand, then a leader's precondition, then a colonial concession, then a rejected shortcut, then a working scheme.

CONCEPT MAP: HOW THE DEMAND ESCALATED



KEY DATA

Year	Event	Significance
1934	M.N. Roy floats the idea	First articulation of an Indian-framed Constitution
1935	INC official demand	Party position hardens into policy
1938	Nehru's adult-franchise precondition	Sets legitimacy standard: elected, not imposed
1940	August Offer	British accept the CA idea in principle
1942	Cripps Mission	First concrete post-war scheme; rejected by Muslim League
1946	Cabinet Mission Plan	Rejects two CAs; gives the scheme that was actually used

STATIC THEORY

- The demand moved through three stages: an individual's idea (Roy, 1934), a party's demand (INC, 1935), and a leader's precondition for legitimacy (Nehru, 1938, on adult franchise).
- The Muslim League's demand for two separate Constituent Assemblies (at Cripps Mission stage) was the central obstacle the Cabinet Mission had to resolve.
- The Cabinet Mission (1946) rejected two Assemblies but did not concede full adult-franchise election either -- it gave an indirect-election scheme through provincial assemblies (covered in Module 2).
- This module explains WHY a Constituent Assembly was demanded; Module 2 explains HOW it was actually composed under the Cabinet Mission Plan.

MEMORY HOOK

IDEA (1934, Roy) -> DEMAND (1935, INC) -> PRECONDITION (1938, Nehru) -> OFFER (1940) -> REJECTED DRAFT (1942, Cripps) -> WORKING SCHEME (1946, Cabinet Mission).

MUST-KNOW FACTS

1. M.N. Roy first proposed the idea of a Constituent Assembly for India in 1934.
2. The Indian National Congress officially demanded a Constituent Assembly in 1935.
3. The Cripps Mission (1942) draft was rejected because the Muslim League wanted two separate Constituent Assemblies.
4. The Cabinet Mission (1946) rejected two Assemblies but supplied the scheme under which the actual CA was formed.

UPSC TRAPS

- WRONG:** The Constituent Assembly was demanded only after Independence in 1947.
- CORRECT:** The demand dates back to 1934 (Roy) and 1935 (INC), well before Independence.
- WRONG:** The Cabinet Mission (1946) was the first British scheme to address a Constituent Assembly.
- CORRECT:** The Cripps Mission (1942) was the first concrete scheme; it was rejected by the Muslim League.

MAINS ANGLE

Analysis: trace the demand for a CA as evidence of a maturing constitutional movement -- from an individual's idea to an organised political precondition -- useful context for essays on India's constitutional evolution.

STUDY LINK

Next -> Module 2: Composition of the Constituent Assembly (Cabinet Mission Plan, 1946)

HIGH

2. Composition of the Constituent Assembly (Cabinet Mission Plan, 1946)

GS-I / GS-II
Polity -
Composition

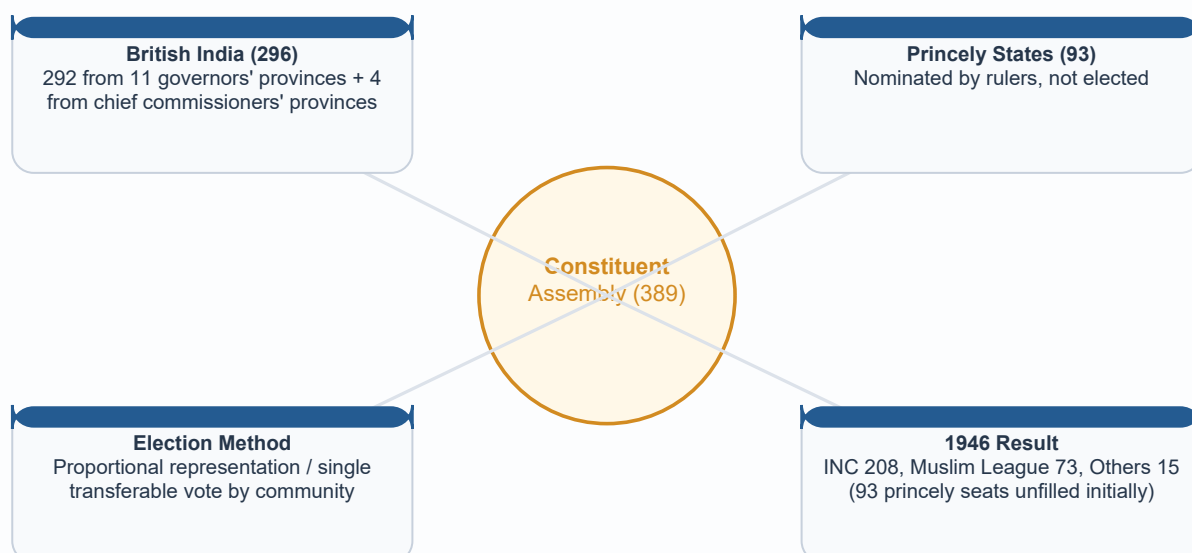
NEWS TRIGGER

Debates on representative legitimacy of constitution-drafting bodies (globally and in India) repeatedly return to how the original CA was actually composed -- indirectly elected and partly nominated, not a directly elected constituent body.

INTRO & ORIGIN

Under the Cabinet Mission Plan (Nov 1946), the CA's total strength was 389: 296 from British India (292 from 11 governors' provinces + 4 from chief commissioners' provinces) and 93 from princely states. Roughly one seat per million population.

Provincial seats were split among Muslims, Sikhs and General communities by population and elected by community members of provincial assemblies via proportional representation / single transferable vote. Princely-state representatives were nominated by rulers.

LABELLED VIEW: ANATOMY OF THE 389-MEMBER ASSEMBLY**KEY DATA**

Component	Detail
Total strength (1946)	389
British India seats	296 (292 from 11 governors' provinces + 4 from chief commissioners' provinces)
Princely states seats	93 (nominated by rulers)
Election method (provinces)	Proportional representation / single transferable vote, by community (Muslim, Sikh, General)
1946 provincial election result (296 seats)	INC 208, Muslim League 73, Others 15
Nature of the CA	Indirectly elected + partly nominated (princely states)

STATIC THEORY

- The CA represented all major sections of Indian society -- Hindus, Muslims, Sikhs, Parsis, Anglo-Indians, Christians, Scheduled Castes, Scheduled Tribes and women -- except Mahatma Gandhi, who was never a member.
- Because provincial seats were elected (indirectly, by provincial assembly members) and princely-state seats were nominated, the CA is correctly described as indirectly elected and partly nominated -- never directly elected on universal adult franchise.
- This composition detail is the evidentiary basis for the 'not representative' criticism analysed later in Module 11.

MEMORY HOOK

389 = 296 (British India, indirectly elected) + 93 (princely states, nominated). Never directly elected.

MUST-KNOW FACTS

1. Total original CA strength was 389: 296 British India + 93 princely states.
2. British-India seats were split 292 (governors' provinces) + 4 (chief commissioners' provinces).
3. 1946 provincial election: INC won 208, Muslim League 73, others 15 seats (out of 296).
4. Princely-state representatives were nominated by rulers, not elected.

UPSC TRAPS

WRONG: The Constituent Assembly was directly elected by universal adult franchise.

CORRECT: It was indirectly elected (by provincial assembly members) and partly nominated (princely states).

WRONG: Mahatma Gandhi was a member of the Constituent Assembly.

CORRECT: Gandhi was never a member of the CA.

MAINS ANGLE

Use the exact composition (indirect election + nomination) as evidence when answering questions on the CA's representative legitimacy -- pair with Module 11's criticism analysis.

STUDY LINK

Next -> Module 3: First Session and Key Office-Bearers

HIGH**3. First Session and Key Office-Bearers**

GS-I / GS-II
Polity - Key
Personalities

NEWS TRIGGER

Questions on 'who held which constitutional office first' remain a stable Prelims pattern; the CA's opening session and its office-bearers are a frequently tested set.

INTRO & ORIGIN

The Constituent Assembly held its first meeting on 9 December 1946. The Muslim League boycotted it, so only 211 members attended out of the total strength.

TIMELINE

9 Dec 1946 — First meeting of the CA; Muslim League boycotts (211 attend)

9 Dec 1946 — Dr. Sachchidananda Sinha elected temporary President (oldest member, following French practice)

11 Dec 1946 — Dr. Rajendra Prasad elected President

13 Dec 1946 — Nehru moves the Objectives Resolution (see Module 4)

KEY DATA

Office	Person
Temporary President	Dr. Sachchidananda Sinha (oldest member)
President	Dr. Rajendra Prasad
Vice-Presidents (two)	H.C. Mukherjee and V.T. Krishnamachari
Drafting Committee Chairman	Dr. B.R. Ambedkar ("Father of the Constitution")
Constitutional / legal advisor	Sir B.N. Rau

STATIC THEORY

- Sachchidananda Sinha's role was purely procedural and temporary -- to preside until a permanent President was chosen, following the French constitutional convention of the oldest member presiding first.
- Rajendra Prasad remained President throughout the CA's life and later became India's first President under the new Constitution.
- This module's Prelims value lies entirely in NOT confusing 'temporary President' with 'President'.

MEMORY HOOK

Temporary President = Sinha (oldest member, one day). Permanent President = Rajendra Prasad (entire CA life).

MUST-KNOW FACTS

1. The CA's first meeting was held on 9 December 1946; the Muslim League boycotted it.
2. Dr. Sachchidananda Sinha was the temporary President (oldest member).
3. Dr. Rajendra Prasad was elected President of the CA.
4. The CA had two Vice-Presidents: H.C. Mukherjee and V.T. Krishnamachari.

UPSC TRAPS

WRONG: Dr. Rajendra Prasad was the temporary President of the CA.

CORRECT: Dr. Sachchidananda Sinha was the temporary President; Rajendra Prasad was the (permanent) President.

WRONG: B.R. Ambedkar presided over the Constituent Assembly as its President.

CORRECT: Ambedkar chaired the Drafting Committee; Rajendra Prasad was the CA's President.

MAINS ANGLE

Minor Mains value; mainly a Prelims-precision module -- keep temporary vs permanent office-bearers strictly separated in any factual recall.

STUDY LINK

Next -> Module 4: The Objectives Resolution and the Preamble

HIGH**4. The Objectives Resolution -> The Preamble**

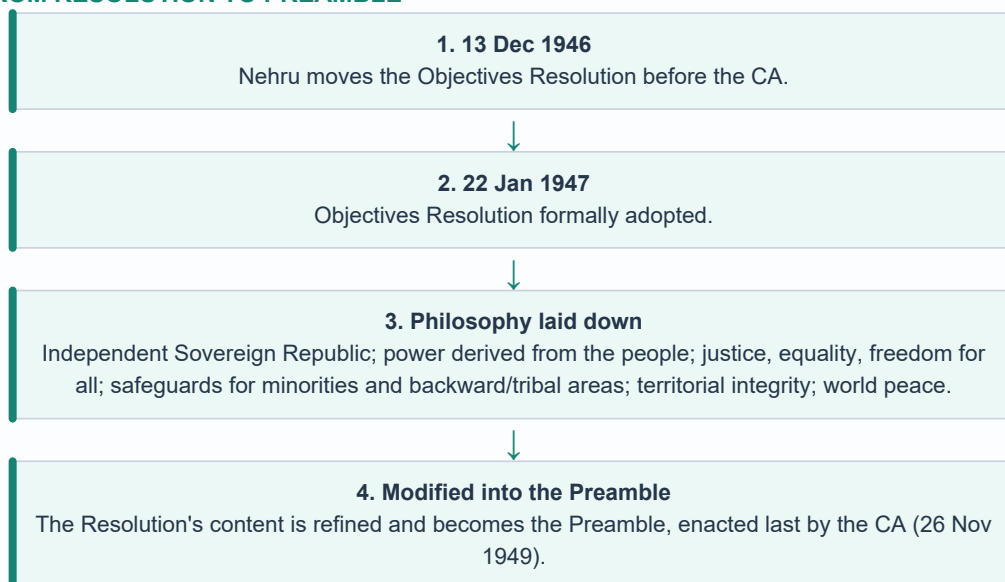
GS-I / GS-II
Polity -
Objectives
Resolution

NEWS TRIGGER

Every Preamble-related current-affairs question (e.g. the 2024 Supreme Court ruling on 'socialist' and 'secular') ultimately traces back to the philosophy first laid down in the Objectives Resolution -- making this the philosophical seed of the entire Constitution.

INTRO & ORIGIN

Jawaharlal Nehru moved the Objectives Resolution on 13 December 1946; it was adopted on 22 January 1947. It laid down the philosophy and fundamentals of the future Constitution -- and its modified form later became the Preamble.

FLOW: FROM RESOLUTION TO PREAMBLE**STATIC THEORY**

- The Objectives Resolution is the single most important philosophical document behind the Preamble -- read it as the Preamble's first draft, not merely a related text.
- Key ideas already present in the Resolution: India as an Independent Sovereign Republic; a Union of territories with autonomous units and residuary powers; power derived from the people; justice/equality/freedom to all; safeguards for minorities, backward and tribal areas; territorial integrity; and world peace.
- Because the Preamble is its 'modified version', several Preamble debates (e.g. on secularism, justice) can be historically traced to this Resolution.

MEMORY HOOK

Objectives Resolution (Nehru, 13 Dec 1946 -> adopted 22 Jan 1947) = the philosophical draft that became the Preamble.

MUST-KNOW FACTS

1. The Objectives Resolution was moved by Nehru on 13 December 1946.
2. It was adopted on 22 January 1947.
3. Its modified form became the Preamble of the Constitution.
4. The Preamble itself was enacted last by the Constituent Assembly.

UPSC TRAPS

WRONG: The Objectives Resolution was moved by Dr. B.R. Ambedkar.

CORRECT: It was moved by Jawaharlal Nehru.

WRONG: The Preamble was drafted first and the Objectives Resolution came later.

CORRECT: The Objectives Resolution (Dec 1946/Jan 1947) came first; the Preamble is its modified, later-enacted version.

MAINS ANGLE

*"The Objectives Resolution is the philosophical seed of the Preamble."
Use this linkage to answer questions on the Preamble's origin and the Constitution's underlying philosophy.*

STUDY LINK

Full Preamble detail ->
04_Preamble_Session-Level.pdf; Next ->
Module 5: Indian Independence Act, 1947

HIGH

5. Impact of the Indian Independence Act, 1947

GS-I / GS-II
Polity -
Sovereignty
Transformation

NEWS TRIGGER

The legal mechanics of how a British-created body became a fully sovereign constitution-making body are a classic 'transformation of legitimacy' theme, similar in spirit to how colonial institutions were repurposed after 1947 (see 01_Historical-Background_Session-Level.pdf, Module 12).

INTRO & ORIGIN

The Indian Independence Act, 1947 transformed the Constituent Assembly's legal status in three concrete ways -- sovereignty, dual functions, and membership.

FLOW: THREE EFFECTS OF THE INDEPENDENCE ACT, 1947



STATIC THEORY

- Before 1947, the CA derived its scheme from the Cabinet Mission Plan (a British-approved arrangement); after the Independence Act, it became legally sovereign in its own right -- an important rebuttal point against the 'CA was not sovereign' criticism (Module 11).
- The CA performing both constituent AND legislative functions simultaneously (with different presiding officers for each role) is a frequently tested structural fact.
- The membership drop (389 -> 299) directly reflects Partition -- provinces fell from 296 to 229 and princely states from 93 to 70.

MEMORY HOOK

Independence Act 1947 = Sovereign CA + Dual role (constituent under Prasad, legislative under Mavlankar) + Strength 389 -> 299.

MUST-KNOW FACTS

1. The Indian Independence Act, 1947 made the CA a fully sovereign body.
2. The CA also functioned as India's first Parliament (Dominion Legislature), chaired by G.V. Mavlankar as legislative body.
3. After Muslim League members withdrew, CA strength fell from 389 to 299.
4. As a constituent body, the CA continued to be chaired by Dr. Rajendra Prasad.

UPSC TRAPS

WRONG: The Constituent Assembly's final strength (at the time of adoption) was 389.

CORRECT: After Partition-related withdrawals, the strength fell to 299.

WRONG: The Constituent Assembly only performed constitution-drafting functions.

CORRECT: It simultaneously acted as the first Parliament (Dominion Legislature) under G.V. Mavlankar.

MAINS ANGLE

The Independence Act's grant of full sovereignty to the CA directly rebuts the 'not a sovereign body' criticism -- use this precisely when evaluating the CA's legitimacy.

STUDY LINK

Next -> Module 6: Major Committees of the Constituent Assembly

HIGH**6. Major Committees of the Constituent Assembly (8 Committees)**GS-I / GS-II
Polity -
Committees**NEWS TRIGGER**

Committee-chairmanship questions ('who chaired which CA committee') are a recurring Prelims trap category, precisely because Nehru, Patel and Prasad each chaired multiple committees with overlapping-sounding names.

INTRO & ORIGIN

The CA distributed its drafting workload across several committees. Eight major committees carried the bulk of institutional design work; the Drafting Committee (Module 7) is the most important of these.

KEY DATA

Committee	Chairman
Union Powers Committee	Nehru
Union Constitution Committee	Nehru
Provincial Constitution Committee	Sardar Patel
Drafting Committee	Dr. B.R. Ambedkar
Advisory Committee on FR, Minorities and Tribal Areas	Sardar Patel
Rules of Procedure Committee	Rajendra Prasad
States Committee (negotiating with states)	Nehru
Steering Committee	Rajendra Prasad

STATIC THEORY

- Nehru chaired three committees (Union Powers, Union Constitution, States); Rajendra Prasad chaired three (Rules of Procedure, Steering, and a minor Finance/Flag role); Sardar Patel chaired two (Provincial Constitution, Advisory Committee on FR/Minorities/Tribal Areas).
- Sub-committees under the Advisory Committee had their own chairs: FR Sub-Committee -- J.B. Kripalani; Minorities Sub-Committee -- H.C. Mukherjee; North-East Frontier (Assam) Tribal and Excluded Areas -- Gopinath Bardoloi; Excluded Areas (other than Assam) -- A.V. Thakkar.
- The Drafting Committee, though only one of eight, is the single most examined committee because it produced the actual text of the Constitution (Module 7).

MEMORY HOOK

Nehru chairs 3 (Union Powers, Union Constitution, States). Prasad chairs 3 (Rules, Steering, Finance/Flag). Patel chairs 2 (Provincial, Advisory-FR/Minorities).

MUST-KNOW FACTS

1. The Drafting Committee was chaired by Dr. B.R. Ambedkar.
2. The Union Constitution Committee and Union Powers Committee were both chaired by Nehru.
3. The Provincial Constitution Committee and the Advisory Committee on FR, Minorities and Tribal Areas were chaired by Sardar Patel.
4. The FR Sub-Committee was chaired by J.B. Kripalani; the Minorities Sub-Committee by H.C. Mukherjee.

UPSC TRAPS

WRONG: Sardar Patel chaired the Drafting Committee.

CORRECT: Ambedkar chaired the Drafting Committee; Patel chaired the Provincial Constitution and Advisory Committees.

WRONG: Rajendra Prasad chaired the Union Constitution Committee.

CORRECT: Nehru chaired the Union Constitution Committee; Prasad chaired the Rules of Procedure and Steering Committees.

MAINS ANGLE

Committee distribution shows collective institutional design, not a one-person drafting effort -- useful nuance when an essay overstates Ambedkar's sole authorship.

STUDY LINK

Next -> Module 7: The Drafting Committee (7 Members)

HIGH**7. The Drafting Committee (7 Members)**

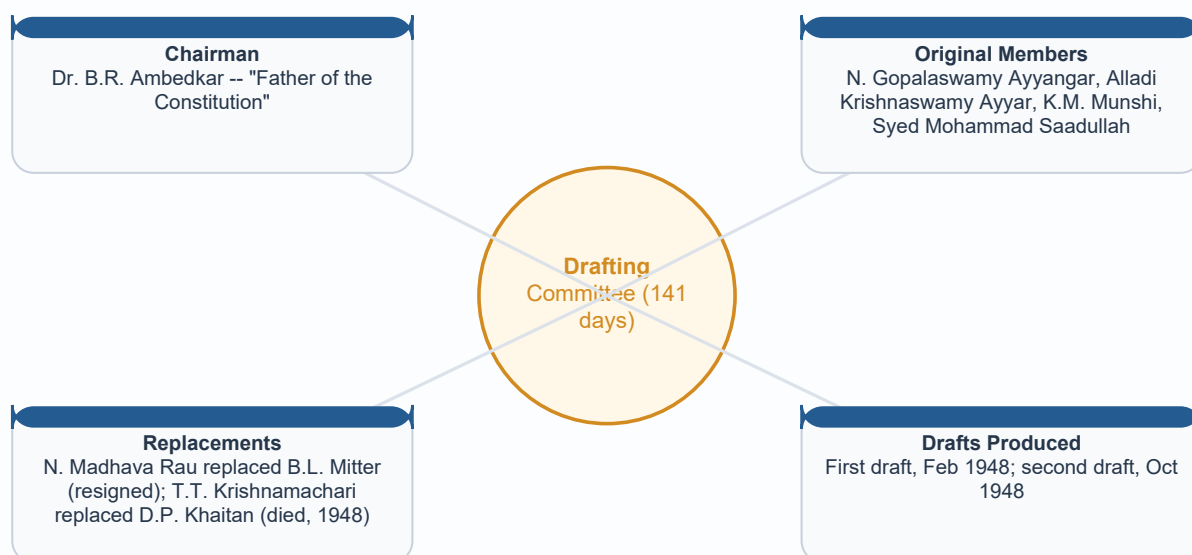
GS-I / GS-II
Polity - Drafting
Committee

NEWS TRIGGER

Ambedkar's legacy as 'Father of the Constitution' is regularly invoked in current political and constitutional-values discourse, making the Drafting Committee's exact membership a durable Prelims and background-context topic.

INTRO & ORIGIN

Set up on 29 August 1947, the Drafting Committee had 7 original members and produced the actual text debated and adopted by the CA. It sat for only 141 days.

LABELLED VIEW: THE 7-MEMBER DRAFTING COMMITTEE**STATIC THEORY**

- The committee's original seven members were Ambedkar (Chairman), N. Gopalaswamy Ayyangar, Alladi Krishnaswamy Ayyar, K.M. Munshi, Syed Mohammad Saadullah, B.L. Mitter and D.P. Khaitan.
- Two membership changes occurred: N. Madhava Rau replaced B.L. Mitter (resignation) and T.T. Krishnamachari replaced D.P. Khaitan (death, 1948).
- Despite handling the Constitution's entire text, the committee sat for only 141 days -- a fact often used to contrast with the 2 years, 11 months, 18 days taken by the full CA (Module 13).
- Ambedkar's title 'Father of the Constitution' (also called 'Modern Manu') stems specifically from this chairmanship and his central role in the enactment debates (Module 8).

MEMORY HOOK

7-member Drafting Committee, 141 days. Ambedkar chairs. Mitter -> Madhava Rau; Khaitan -> T.T. Krishnamachari.

MUST-KNOW FACTS

1. The Drafting Committee was set up on 29 August 1947 with 7 members, chaired by Ambedkar.
2. The committee sat for only 141 days.
3. B.L. Mitter was replaced by N. Madhava Rau; D.P. Khaitan (died 1948) was replaced by T.T. Krishnamachari.
4. The first draft of the Constitution was ready in February 1948; the second draft in October 1948.

UPSC TRAPS

WRONG: The Drafting Committee had 5 original members.

CORRECT: It had 7 original members.

WRONG: The Drafting Committee sat for as long as the full Constituent Assembly (nearly 3 years).

CORRECT: It sat for only 141 days, though the full CA process spanned 2 years, 11 months, 18 days.

MAINS ANGLE

Ambedkar's chairmanship of the Drafting Committee, not sole personal authorship, is the technically correct basis for his title 'Father of the Constitution' -- a useful precision point in essays on his contribution.

STUDY LINK

Next -> Module 8: Enactment - Readings, Amendments, Adoption

HIGH

8. Enactment: Readings, Amendments and Adoption

GS-I / GS-II

Polity -
Enactment
Process

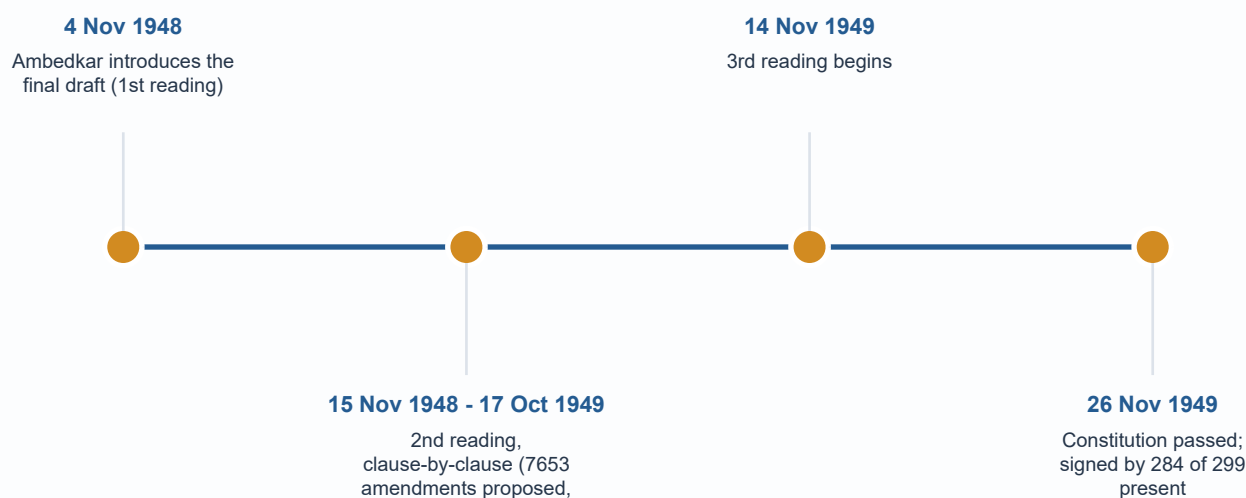
NEWS TRIGGER

The scale of deliberation behind the Constitution (thousands of proposed amendments, years of clause-by-clause debate) is frequently cited in commemorative writing around Constitution Day and the 75th-anniversary observances of 2024.

INTRO & ORIGIN

The Drafting Committee's text went through three formal readings before the CA, involving thousands of proposed amendments, before the Constitution was finally passed on 26 November 1949.

TIMELINE: THE THREE READINGS



STATIC THEORY

- The 2nd reading (clause-by-clause debate) is where the bulk of the CA's deliberative work happened: 7653 amendments were proposed, of which 2473 were actually discussed.
- The Constitution as finally adopted comprised the Preamble, 395 Articles and 8 Schedules -- and the Preamble itself was enacted last, to conform with the already-adopted body of the Constitution.
- Of 299 members present on 26 November 1949, 284 signed the Constitution, formally completing the adoption process.

MEMORY HOOK

1st reading 4 Nov 1948 -> 2nd reading (7653 amendments, 2473 discussed) -> 3rd reading 14 Nov 1949 -> Passed 26 Nov 1949 (284/299 signed).

MUST-KNOW FACTS

1. Ambedkar introduced the final draft on 4 November 1948 (1st reading).
2. The 2nd reading saw 7653 amendments proposed and 2473 discussed.
3. The Constitution was passed on 26 November 1949, signed by 284 of 299 members present.
4. As adopted, the Constitution had a Preamble, 395 Articles and 8 Schedules; the Preamble was enacted last.

UPSC TRAPS

WRONG: The Constitution was adopted on 26 January 1950.

CORRECT: It was adopted on 26 November 1949; 26 January 1950 is the date it commenced (Module 9).

WRONG: The Preamble was the first part of the Constitution to be enacted.

CORRECT: The Preamble was enacted last, after the rest of the Constitution was finalised.

MAINS ANGLE

Cite the volume of deliberation (thousands of amendments, years of debate) as direct evidence against the 'hasty' or 'copied' criticism of the Constitution.

STUDY LINK

Next -> Module 9: Enforcement - Adoption vs Commencement

HIGH**9. Enforcement: Adoption vs Commencement**

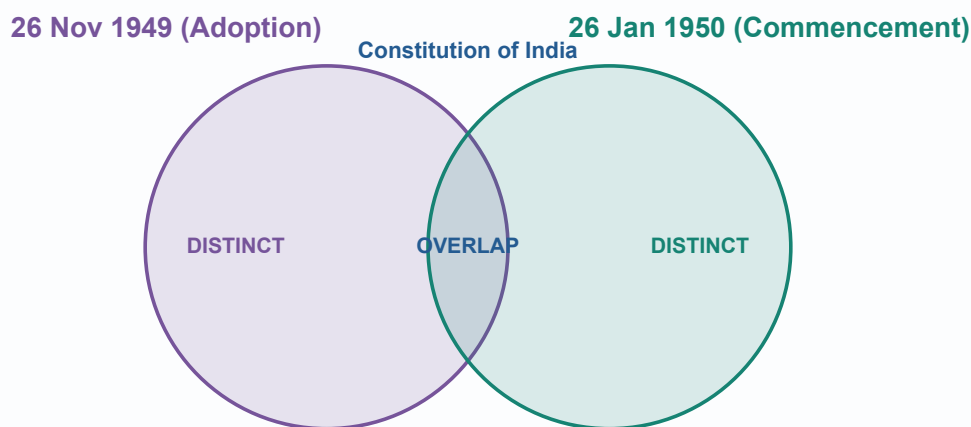
GS-I / GS-II
Polity -
Enforcement

NEWS TRIGGER

26 November is Constitution Day (Samvidhan Divas, since 2015) and 26 January is Republic Day -- the single most tested date-pair in this chapter, and the 2024 75th-anniversary observances kept both dates in continuous public discussion.

INTRO & ORIGIN

Not all Articles came into force on the same date. A specific set of Articles took effect immediately on adoption (26 Nov 1949); the rest, including the bulk of the Constitution, commenced on 26 January 1950 -- chosen deliberately to honour Purna Swaraj Day (1930).

VENN: TWO DISTINCT DATES, ONE CONSTITUTION**26 Nov 1949 (Adoption)**

- Constitution formally adopted by the CA
- Select Articles effective immediately: 5, 6, 7, 8, 9, 60, 324, 366, 367, 379, 380, 388, 391, 392, 393
- Covers citizenship, elections, provisional Parliament matters

Constitution of India

- Same single Constitution
- Preamble dated 26 Nov 1949

26 Jan 1950 (Commencement)

- Remaining Articles commence -- "date of commencement" / Republic Day
- 26 Jan chosen to honour Purna Swaraj Day, 1930 (Lahore Session, Dec 1929)
- Independence Act 1947 and GoI Act 1935 repealed on commencement

The Constitution has one adoption date and a different, symbolically chosen commencement date.

STATIC THEORY

- A short, specific list of Articles (citizenship, elections, provisional parliament and related machinery -- Articles 5, 6, 7, 8, 9, 60, 324, 366, 367, 379, 380, 388, 391, 392, 393) came into force immediately on 26 November 1949, ahead of the rest.
- 26 January was chosen for commencement specifically to honour Purna Swaraj Day (complete independence pledge, Lahore Session, December 1929) -- a deliberate symbolic choice, not an administrative default.
- On commencement, both the Indian Independence Act, 1947 and the Government of India Act, 1935 were repealed (the Abolition of Privy Council Jurisdiction Act, 1949 continued in force).

MEMORY HOOK

Adopted 26 Nov 1949. Commenced 26 Jan 1950 (Republic Day, honouring Purna Swaraj Day 1930). Never merge the two dates.

MUST-KNOW FACTS

1. The Constitution was adopted on 26 November 1949 but most of it commenced on 26 January 1950.
2. A specific set of Articles (e.g. 5, 6, 7, 8, 9, 60, 324, 366, 367, 379, 380, 388, 391, 392, 393) took effect immediately on adoption.
3. 26 January was chosen to honour Purna Swaraj Day, 1930 (Lahore Session, December 1929).
4. The Indian Independence Act, 1947 and the Government of India Act, 1935 were repealed on commencement.

UPSC TRAPS

WRONG: Every Article of the Constitution came into force on 26 November 1949.

CORRECT: Only a specific short list of Articles came into force on 26 Nov 1949; the rest commenced on 26 Jan 1950.

WRONG: 26 January was chosen arbitrarily as a convenient date.

CORRECT: It was deliberately chosen to honour Purna Swaraj Day, 1930.

MAINS ANGLE

The adoption/commencement split, and the symbolic choice of 26 January, illustrate how the framers consciously linked the Constitution to the freedom movement's own historical milestones.

STUDY LINK

Next -> Module 10: Other Functions
Performed by the CA

HIGH**11. Criticism of the Constituent Assembly**

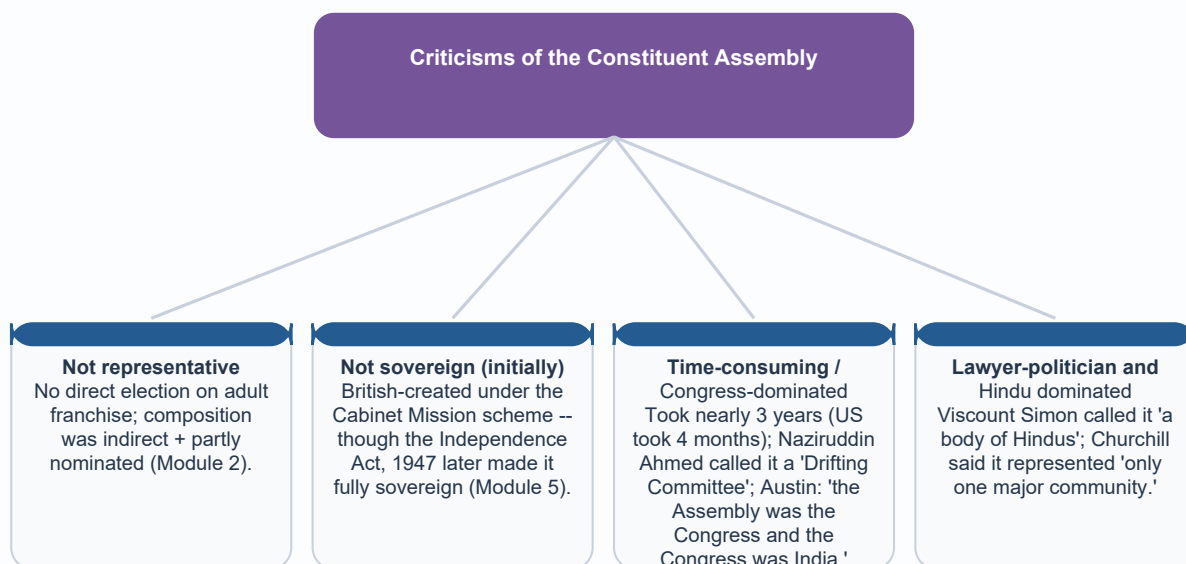
GS-I / GS-II
Polity - Criticism
and Legitimacy

NEWS TRIGGER

Debates over the CA's representativeness periodically resurface whenever the Constitution's legitimacy or 'foreign origin' is publicly questioned -- making the classic criticisms and their rebuttals a durable Mains theme.

INTRO & ORIGIN

Was the Constituent Assembly a legitimate, representative body? Critics raised several objections; each has a specific, textbook-recorded basis and, in several cases, a recorded rebuttal.

ARGUMENT TREE: WAS THE CA LEGITIMATE AND REPRESENTATIVE?**STATIC THEORY**

- The 'not representative' criticism is textually supported by the composition facts in Module 2 (indirect election, nomination for princely states) -- it is not a vague complaint but a specific, verifiable structural feature.
- The 'not sovereign' criticism is directly addressed by the Indian Independence Act, 1947 (Module 5), which made the CA fully sovereign -- so this criticism applies mainly to the CA's pre-1947 status.
- The 'time-consuming' criticism (contrasted with the US Constitution's 4-month drafting) and the 'Congress-dominated' criticism (Austin's famous line) both target the CA's process rather than its final product.
- A balanced Mains answer should present these criticisms alongside their rebuttals (e.g. sovereignty gained in 1947, deliberative rigour shown by amendment volume in Module 8) rather than treat the CA as either wholly illegitimate or beyond criticism.

MEMORY HOOK

4 criticisms: NOT representative, NOT (initially) sovereign, TOO slow / Congress-dominated, Hindu/lawyer-dominated -- each has a specific textbook basis.

MUST-KNOW FACTS

1. Naziruddin Ahmed called the CA a 'Drifting Committee' because of the time it took.
2. Granville Austin observed: 'the Assembly was the Congress and the Congress was India.'
3. Viscount Simon described the CA as 'a body of Hindus'; Churchill said it represented only one major community.
4. The CA's initial lack of full sovereignty was remedied by the Indian Independence Act, 1947.

UPSC TRAPS

- WRONG:** The Constituent Assembly was never a sovereign body, even after 1947.
- CORRECT:** The Indian Independence Act, 1947 made it a fully sovereign body.
- WRONG:** All criticisms of the CA remain equally valid after 1947.
- CORRECT:** Some criticisms (e.g. sovereignty) were specifically addressed by later developments; others (e.g. representativeness) remain structurally true.

MAINS ANGLE

Model thesis: the Constituent Assembly's process had genuine structural limitations (indirect election, initial lack of sovereignty, time taken) but these were partly remedied (1947 sovereignty) and partly offset by rigorous deliberation (7653 amendments proposed) -- so blanket delegitimisation is unwarranted, but the criticisms are not baseless either.

STUDY LINK

Next -> Module 12: Key People, Symbols and Prelims Trivia

HIGH

12. Key People, Symbols and Prelims Trivia

GS-I / GS-II
Polity - Prelims
Gold

NEWS TRIGGER

The handwritten, illustrated original Constitution (with its calligrapher and artists) is periodically displayed and discussed in Constitution Day and Republic Day coverage, keeping this trivia set exam-relevant.

INTRO & ORIGIN

Beyond the main drafting narrative, a set of specific named-individual facts about the CA's working is consistently tested in Prelims.

KEY DATA

Role / Item	Name / Fact
Symbol / seal of the CA	Elephant
Constitutional / legal advisor	Sir B.N. Rau
Secretary	H.V.R. Iyengar
Chief draftsman	S.N. Mukerjee
Calligrapher (hand-written original)	Prem Behari Narain Raizada (flowing italic style)
Artistic illustration	Nand Lal Bose and artists of Shantiniketan; Preamble page illustrated by Beohar Rammanohar Sinha
Authoritative Hindi text	Provided by the 58th Amendment, 1987

STATIC THEORY

- Sir B.N. Rau's role as constitutional advisor (drafting preliminary versions studied by the Drafting Committee) is distinct from Ambedkar's role as Chairman of the Drafting Committee -- the two are frequently confused in Prelims options.
- The original Constitution is a hand-calligraphed, hand-illustrated document -- not a printed one -- with named individuals responsible for both the script and the artwork.
- The 58th Amendment (1987) authorised a definitive Hindi text of the Constitution, decades after the original English adoption.

MEMORY HOOK

Symbol: Elephant. Advisor: B.N. Rau. Secretary: Iyengar. Draftsman: Mukerjee. Calligrapher: Raizada. Art: Nand Lal Bose (Shantiniketan). Hindi text: 58th Amdt (1987).

MUST-KNOW FACTS

1. The Constituent Assembly's symbol/seal was the Elephant.
2. Sir B.N. Rau served as the constitutional/legal advisor to the CA.
3. Prem Behari Narain Raizada hand-calligraphed the original Constitution.
4. An authoritative Hindi text of the Constitution was provided only later, by the 58th Amendment, 1987.

UPSC TRAPS

WRONG: B.N. Rau chaired the Drafting Committee.

CORRECT: Ambedkar chaired the Drafting Committee; B.N. Rau was the constitutional advisor.

WRONG: The Constitution had an authoritative Hindi text from the very beginning (1950).

CORRECT: The authoritative Hindi text was provided only by the 58th Amendment in 1987.

MAINS ANGLE

Largely a Prelims-trivia module; use sparingly in Mains only as colour for essays on the Constitution's cultural and artistic dimensions.

STUDY LINK

Next -> Module 13: Integrated Chronology (1934-1950)

HIGH

13. Integrated Chronology: Idea to Republic (1934-1950)

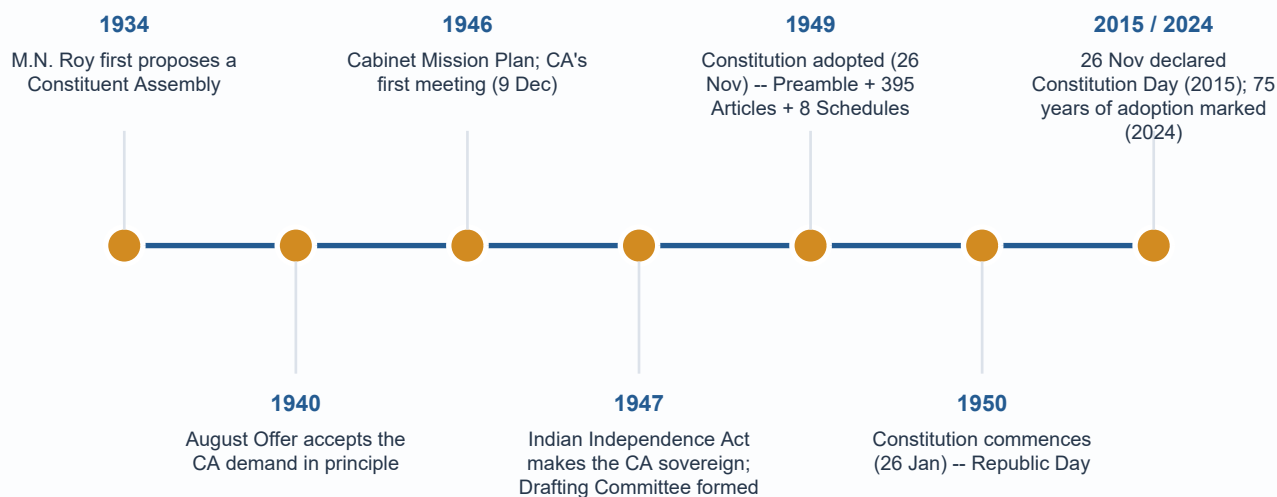
GS-I / GS-II
Polity - Integrated
Timeline

NEWS TRIGGER

2024's 75th-anniversary observances of the Constitution's adoption (26 Nov 1949) prompted wide public revisiting of this exact chronology, from the earliest demand to the Republic Day commencement.

INTRO & ORIGIN

This module consolidates every date from Modules 1-9 into a single chronological spine -- the fastest way to revise the entire chapter before an exam.

INTEGRATED TIMELINE: 1934 TO 1950 (AND BEYOND)**STATIC THEORY**

- Treat this timeline as the single-page revision anchor for the whole chapter: every earlier module's key date should map onto one of these entries.
- Two dates dominate Prelims testing above all others: 26 November 1949 (adoption) and 26 January 1950 (commencement) -- see Module 9 for why they must never be merged.

MEMORY HOOK

1934 (idea) -> 1946 (Cabinet Mission + first meeting) -> 1947 (sovereignty) -> 1949 (adopted) -> 1950 (commenced) -> 2015/2024 (Constitution Day / 75 years).

MUST-KNOW FACTS

1. The idea-to-Republic chronology spans 1934 (M.N. Roy's idea) to 26 January 1950 (commencement).
2. The Constituent Assembly's own working period was 2 years, 11 months and 18 days (9 Dec 1946 to 26 Nov 1949).
3. 26 November is Constitution Day (declared in 2015); 2024 marked 75 years since adoption.
4. 26 January 1950 is both the Constitution's commencement date and Republic Day.

UPSC TRAPS

WRONG: The Constituent Assembly's working period and India's Republic Day are the same event.

CORRECT: The CA's working period ended with adoption (26 Nov 1949); Republic Day (26 Jan 1950) marks commencement, a separate later date.

MAINS ANGLE

Use this integrated timeline as the factual backbone for any essay tracing India's constitutional evolution from demand to Republic.

STUDY LINK

Next -> Module 14: UPSC Analysis and Mains Answer-Writing Framework

HIGH

14. UPSC Analysis and Mains Answer-Writing Framework

GS-I / GS-II
Mains Polity -
Answer Writing

NEWS TRIGGER

Questions on the Constituent Assembly's legitimacy, representativeness and the Objectives Resolution-Preamble linkage remain live Mains themes, especially around Constitution Day commemorations.

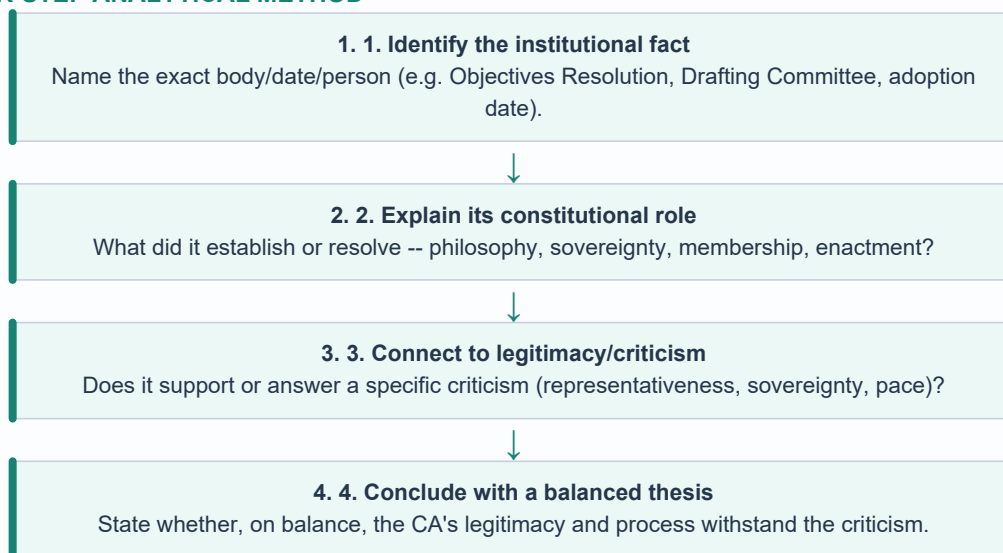
INTRO & ORIGIN

Analysis: a strong Mains answer on the Constituent Assembly does not merely recite dates -- it identifies the specific institutional fact, explains its constitutional significance, and evaluates the associated criticism where relevant.

KEY DATA

Question theme	Core argument	Value addition
Was the CA representative?	Indirectly elected + partly nominated, yet inclusive of all major communities except Gandhi	Composition table (Module 2)
Objectives Resolution and the Preamble	Resolution is the philosophical draft; Preamble is its modified, last-enacted version	13 Dec 1946 -> 22 Jan 1947 -> 26 Nov 1949
Legitimacy of the CA	Initial British-scheme origin, but made fully sovereign by the Independence Act, 1947	389 -> 299 membership shift
Adoption vs commencement	26 Nov 1949 (adopted) vs 26 Jan 1950 (commenced, Republic Day)	Symbolic link to Purna Swaraj Day, 1930

THE FOUR-STEP ANALYTICAL METHOD



STATIC THEORY

- Avoid writing every date from every module in a single Mains answer; select only the developments that serve the specific directive word (Discuss / Examine / Analyse) and thesis.
- A 'was the CA legitimate' answer should always cite BOTH sides: the composition-based criticism (Module 2, 11) and the sovereignty gained via the 1947 Act (Module 5) -- not one side alone.
- For chronology-heavy answers, use the integrated timeline (Module 13) as the factual skeleton, then layer analysis on top of it.

MEMORY HOOK

IDENTIFY the fact -> EXPLAIN its role -> CONNECT to legitimacy/criticism -> CONCLUDE with a balanced thesis.

MUST-KNOW FACTS

1. A complete Mains answer links the Objectives Resolution, the Drafting Committee, and the adoption/commencement dates into one coherent narrative rather than listing them separately.
2. The CA's legitimacy question requires citing both the composition-based criticism and the 1947 sovereignty grant.
3. 26 Nov 1949 (adoption) and 26 Jan 1950 (commencement) anchor almost every chronology-based question in this chapter.

UPSC TRAPS

- WRONG:** Write every date and name from every module into one Mains answer.
- CORRECT:** Select only the facts relevant to the specific directive and thesis of the question.
- WRONG:** Present only the criticisms of the CA without their rebuttals (or vice versa).
- CORRECT:** A balanced answer must weigh both the structural criticisms and the corrective developments (e.g. 1947 sovereignty).

MAINS ANGLE

Model thesis: the Constituent Assembly began as an indirectly elected, British-scheme body but progressively acquired full sovereignty (1947), conducted extraordinarily thorough deliberation (thousands of amendments), and produced a Constitution whose philosophical core -- the Objectives Resolution turned Preamble -- has endured essentially unchanged for over 75 years.

STUDY LINK

Full Polity revision -> Preamble, Salient Features, Fundamental Rights

MEDIUM UPSC RELEVANCE

MEDIUM

10. Other Functions Performed by the Constituent Assembly

GS-I / GS-II
Polity - Ancillary
Functions

NEWS TRIGGER

National symbols adopted by the CA (Flag, Anthem, Song) remain part of protocol and civic-education discourse, and are periodically referenced in Republic Day and Independence Day coverage.

INTRO & ORIGIN

Beyond drafting the Constitution, the CA also performed several other one-time national functions and continued functioning after 26 January 1950 as India's provisional Parliament.

KEY DATA

Function	Detail
Commonwealth membership	Ratified, May 1949
National Flag	Adopted 22 July 1947
National Anthem and National Song	Adopted 24 January 1950
First President of India	Rajendra Prasad elected, 24 January 1950
Provisional Parliament	CA continued as provisional Parliament from 26 Jan 1950 until the first general elections (1951-52)

STATIC THEORY

- The CA held 11 sessions over 2 years, 11 months and 18 days, studied roughly 60 countries' constitutions, debated the draft for 114 days, and the whole exercise cost about Rs 64 lakh.
- After the Constitution commenced, the same body continued as a provisional Parliament until the first Lok Sabha elections of 1951-52 -- meaning India briefly had a Constitution without a directly elected Parliament in place.

MEMORY HOOK

CA: 11 sessions, 2y 11m 18d, ~60 countries studied, ~Rs 64 lakh cost. Also: Flag (Jul 1947), Anthem/Song (Jan 1950), first President (Jan 1950).

MUST-KNOW FACTS

1. The CA ratified India's Commonwealth membership in May 1949.
2. The National Flag was adopted on 22 July 1947; the National Anthem and Song on 24 January 1950.
3. Rajendra Prasad was elected India's first President on 24 January 1950.
4. The CA continued as a provisional Parliament from 26 January 1950 until the 1951-52 general elections.

UPSC TRAPS

- WRONG:** India had a directly elected Parliament from the day the Constitution commenced.
- CORRECT:** The CA itself continued as a provisional Parliament until the first general elections of 1951-52.
- WRONG:** The National Anthem and Flag were adopted on the same date.
- CORRECT:** The Flag was adopted in July 1947; the Anthem and Song were adopted in January 1950.

MAINS ANGLE

The CA's continuation as provisional Parliament highlights a practical, transitional aspect of India's democratic birth -- useful nuance for essays on constitutional continuity.

STUDY LINK

Next -> Module 11: Criticism of the Constituent Assembly

End of Register Notes — UPSC Agent / Copilot CLI